

24AHCV00117 24AHCV00117

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-28

Motion: PLAINTIFF DONALD GONG TOY'S MOTION FOR SUMMARY JUDGMENT

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Case Number: 24AHCV00117 Hearing Date: July 28, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

DONALD GONG TOY,

Plaintiff(s),

vs.

NAVARRO'S
TOWING, et al.,

Defendant(s).

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CASE NO.: 24AHCV00117

[TENTATIVE]

ORDER RE: PLAINTIFF DONALD GONG TOY'S MOTION FOR SUMMARY
JUDGMENT

Dept.

3

8:30

a.m.

July 28,

2026

I.

INTRODUCTION

On January

19, 2024, plaintiff Donald Gong Toy ("Plaintiff") filed this action against
defendants Navarro's Towing, Eddie Navarro, and Heriberto Navarro ("Defendant")
asserting causes of action for breach of contract and conversion of a 1966
Lincoln Continental ("Vehicle").

On April 11,
2024, Defendant filed an answer.

On January
22, 2026, the Court granted Plaintiff's motion and deemed admitted the matters
within Plaintiff's Requests for Admission (Set One), propounded on Defendant on
May 5, 2025.

On May 5,
2026, Plaintiff filed this motion for summary judgment or, in the alternative,
summary adjudication. Plaintiff argues that the undisputed facts show that
Defendant is liable for breach of contract, and conversion of the Vehicle, and
that Plaintiff is entitled to treble damages and attorneys' fees under Penal
Code section 496, subd. (c).

II. LEGAL STANDARD

In reviewing a motion for summary
judgment, courts must apply a three-step analysis: "(1) identify the issues
framed by the pleadings; (2) determine whether the moving party has negated the
opponent's claims; and (3) determine whether the opposition has demonstrated
the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) A
moving plaintiff meets their burden on summary judgment by proving each element
entitling the party to judgment on that cause of action. (Code Civ. Proc., §
437c, subd. (p)(1).) The burden then shifts to the defendant or cross-defendant
to show that a triable issue of one or more material facts exists as to that
cause of action or defense thereto.

III. DISCUSSION

A. First Cause of Action

To
prove a breach of contract, the plaintiff must prove "(1) the contract, (2) the
plaintiff's performance of the contract or excuse for nonperformance, (3) the
defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman*
v. Hartley (2014) 224 Cal.App.4th 1182, 1186.

Matters

admitted in response to a request for admission is conclusively established against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission under Code of Civil Procedure section 2033.300. (Code Civ. Proc., § 2033.410, subd. (a).) Plaintiff relies on the order entered on January 23, 2026, deeming admitted all 41 Requests for Admission, but fails to attach the copies of the actual requests for admission. Plaintiff's only cited evidence in his separate statement is a copy of the court's minute order, which does not identify each of the matters admitted.

But

even if Plaintiff could establish that the matters deemed admitted corresponded with the particular facts set forth in his separate statement, Plaintiff's motion would still be denied because he concedes that triable issues of material fact still exist regarding his damages and with "[d]amages to be proven at trial." (MPA, p. 4.) Since damages are an element of a claim for breach of contract, damages must be established in order to obtain summary judgment or adjudication. (Paramount Petroleum Corp. v. Superior Court (2014) 227 Cal.App.4th 226, 242-243.) This issue was addressed directly in Paramount Petroleum, in which the Second Appellate District held that summary judgment is not appropriate if issues of the calculation of damages apparently remain to be determined. (Id., 227 Cal.App.4th at p. 243.) The court stated that "[t]he correct procedure ... would have been a motion to bifurcate the issue of liability, which the parties could have tried upon the undisputed facts. [Citation.] A decision on the issue of liability against the party on whom liability is sought to be imposed does not result in a judgment until the issue of damages is resolved. [Citation.]" (Ibid.) Since there is no statutory authority for a "partial" summary judgment-summary adjudication, the motion as to the First Cause of Action is DENIED.

B.

Second Cause of Action

The

elements of conversion require the plaintiff to show: (1) ownership or right to possession of personal property, (2) defendant's disposition of the property inconsistent with the plaintiff's rights, and (3) resulting damages. (Fischer v. Machado (1996) 50 Cal.App.4th 1069, 1072.)

Damages

recoverable for the wrongful conversion of personal property is presumed to be:

(1) “[t]he value of the property at the time of the conversion, with the interest from that time, or, an amount sufficient to indemnify the party injured for the loss which is the natural, reasonable and proximate result of the wrongful act complained of and which a proper degree of prudence on his part would not have averted” and (2) “fair compensation for the time and money properly expended in pursuit of the property.” (Civil Code, § 3336.)

As

with his breach of contract claim, Plaintiff cannot obtain summary adjudication of his conversion claim because Plaintiff’s sole evidence of any damages, an element of the tort, is an admission that the Vehicle is worth “at least \$4,000.” This is not sufficiently definite to make a prima facie showing that no triable issues of material fact exist.

C. Treble Damages/Attorney’s Fees

Last, Plaintiff

seeks summary adjudication of his entitlement to treble damages and attorneys’ fees pursuant to Penal Code § 496(c). Penal Code § 496(c) allows any person who has been injured by a person who sells stolen property to bring an action for treble damages, costs of suit, and reasonable attorney’s fees.

There is no statutory basis for granting Plaintiff’s request for summary adjudication of his prayer for treble damages and attorneys’ fees. “A party may move for summary adjudication as to ... one or more claims for damages, ... if the party contends ... that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code.” (Code Civ. Proc., § 437c, subd. (f)(1).) Plaintiff seeks adjudication of his right to recover treble damages and attorneys’ fees, which is not the same as contending that no grounds for punitive damages under Civil Code § 3294 exists.

While a party may move for summary adjudication of a claim for damages other than punitive damages that does not completely dispose of a cause of action, before doing so, the parties must stipulate to that the motion will further the interest of judicial economy and submit a joint stipulation stating the issue or issues to be adjudicated. (Code Civ. Proc., § 437c, subd. (t)(1). Here, there is no evidence that the parties

have stipulated to such a motion and, even if there were, summary adjudication would still be inappropriate because triable issues of material fact remain regarding Plaintiff's actual damages. (See MPA, p. 6 [admitting "amount of actual damages, which will be trebled, will be proven at trial"].)

VI. CONCLUSION

In light of
the foregoing, the motion for summary judgment/adjudication is DENIED.

Moving party to give notice.

Dated
this 28th
day of July
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.